		Total amount of attorney fees granted $35,471.50 Plaintiff is also entitled to "costs and expenses" incurred in pursuing his Song-Beverly Act claims and has filed a memorandum of costs seeking $1,988.90. (See Civ. Code, § 1794, subd. (d); see also Sarbaz Decl. ¶ 9; Shumake Decl. at Ex. 9; ROA No. 121 [11/17/25 memorandum of costs].) Defendant has not filed a motion to tax costs to date and has not challenged any of the costs in its opposition to this motion. As such, all $1,988.90 in costs and expenses are granted. (See *Douglas v. Willis* (1994) 27 Cal.App.4th 287, 289-290 ["""failure to file a motion to tax costs constitutes a waiver of the right to object"""].) Plaintiff shall give notice.
5.	**The Designers NYC, LLC dba Little Big Brands vs. Brand Models & Talent, Inc.** **21-01204721**	**Motion for Attorney Fees** The motion by plaintiff The Designers NYC, Inc., dba Little Big Brands for attorney fees is DENIED. (Code Civ. Proc., § 1021 ["Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties"]; *Trope v. Katz* (1995) 11 Cal.4th 274, 278 ["California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees"].) Moving party cites no authority allowing it to recover attorney fees incurred in this action. Moving party did not sue for breach of contract, and cites no authority allowing fees under Civ. Code, § 3300. Further, this Court effectively determined that moving party was 67% at fault for the damages incurred in settling the underlying litigation. (Scheper Decl. in support of motion, ¶ 7 ["the Court found Plaintiff incurred $90,000 in settlement and $28,000 in legal fees and costs, totaling $118,000, of which it awarded $38,940"]; see also Ruling and Statement of Decision [ROA 245], § V "Damages" [apportioning 33% of liability to defendant].) Thus, moving party has not shown that "the trier of fact determined that the indemnitee was without fault in the principal case which is the basis for the action in indemnity." (Code Civ. Proc., § 1021.6, subd. (c).) Defendant Brand Models and Talent, Inc. shall give notice.

6.	**Epstein vs. Hanford Kibou Investments LLC** **25-01527519**	**1. Motion to Disqualify Attorney of Record** **2. Motion to Seal** **3. Case Management Conference** Defendant Wenqiang Bian's Motion to Disqualify is GRANTED. Defendant Bian brings this motion to disqualify Kristopher Diulio and the Diulio Law Firm PC from representing Plaintiffs in this action. "To protect the confidentiality of the attorney-client relationship, the California Rules of Professional Conduct bar an attorney from accepting 'employment adverse to a client or former client where, by reason of the representation of the client or former client, the [attorney] has obtained confidential information material to the employment except with the informed written consent of the client or former client.'" (*In re Complex Asbestos Litigation* (1991) 232 Cal.App.3d 572, 587; Rule 1.9 Rules of Prof. Conduct.) "For these reasons, an attorney will be disqualified from representing a client against a former client when there is a substantial relationship between the two representations. Id. When a substantial relationship exists, the courts presume the attorney possesses confidential information of the former client material to the present representation." (Id.) A "standing" requirement is implicit in disqualification motions. (*Coldren v. Hart, King & Coldren, Inc*. (2015) 239 Cal.App.4th 237, 247.) Generally, before disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney. The burden is on the party seeking disqualification to establish the attorney-client relationship. (Id.) **Attorney-client relationship** A prior attorney-client relationship exists between Kristopher P. Diulio of The Diulio Firm PC and defendant Bian. Diulio previously represented defendant Bian in a prior action known as the Cashera Lawsuit. On May 20, 2019, a lawsuit entitled *Khodadad v. Banuelos*, et. al, Case No. 19C0195 (the "Cashera Lawsuit"), was filed in Kings County Superior Court by plaintiffs Tony Khodadad and Cashera Plaza, LLC (the "Cashera Claimants") against Bian, Bian's wife, their family trust, and Rene "Ray" Francis LaTreill ("LaTreill"), Bian's real estate broker (the "Cashera Respondents"). In that case, LaTreill arranged a loan for Bian to make to the Cashera Claimants, as borrowers. When the borrowers failed to repay the loan, LaTreill handled the foreclosure process against the property securing the loan.